CHAPTER 42 Scheduled and Tribal Areas

Article 244, in Part X of the Constitution, envisages a special system of administration for certain areas designated as 'scheduled areas' and 'tribal areas'. The Fifth Schedule of the Constitution deals with the administration and control of scheduled areas and scheduled tribes in any state except the four states of Assam, Meghalaya, Tripura and Mizoram [1]. The Sixth Schedule of the Constitution, on the other hand, deals with the administration of the tribal areas in the four northeastern states of Assam, Meghalaya, Tripura and Mizoram.

Administration of Scheduled Areas

The purpose of scheduled areas is to preserve the tribal autonomy, their culture and economic empowerment; to ensure social, economic and political justice and preservation of peace and good governance, and to protect tribals from social injustice and exploitation. It is with this object in mind that the constitution created the Fifth Schedule which has been called as “a constitution within a constitution”.[2]

The various features of administration contained in the Fifth Schedule are as follows:

1. ***Declaration of Scheduled Areas:*** The President is empowered to declare an area to be a scheduled area. He/she can also increase or decrease its area, alter its boundary lines, rescind such designation or make fresh orders for such redesignation on an area in consultation with the governor of the state concerned.



The criteria for declaring any area as a scheduled area is as follows[2a]:

    1. Preponderance of tribal population;
    2. Compactness and reasonable size of the area;
    3. A viable administrative entity such as a District, Block or Taluk; and
    4. Economic backwardness of the area as compared to the neighbouring areas.

The above criteria for declaration of scheduled areas is as such not spelt out in the constitution, but has become well-established.

2. ***Executive Power of State and Centre:*** The executive power of a state extends to the scheduled areas therein. But the governor has a special responsibility regarding such areas. He/she has to submit a report to the President regarding the administration of such areas, annually or whenever so required by the President. The executive power of the Centre extends to giving directions to the states regarding the administration of such areas.

3. ***Tribes Advisory Council:*** Each state having scheduled areas has to establish a tribes advisory council to advise on welfare and advancement of the scheduled tribes. It is to consist of 20 members, three-fourths of whom are to be the representatives of the scheduled tribes in the